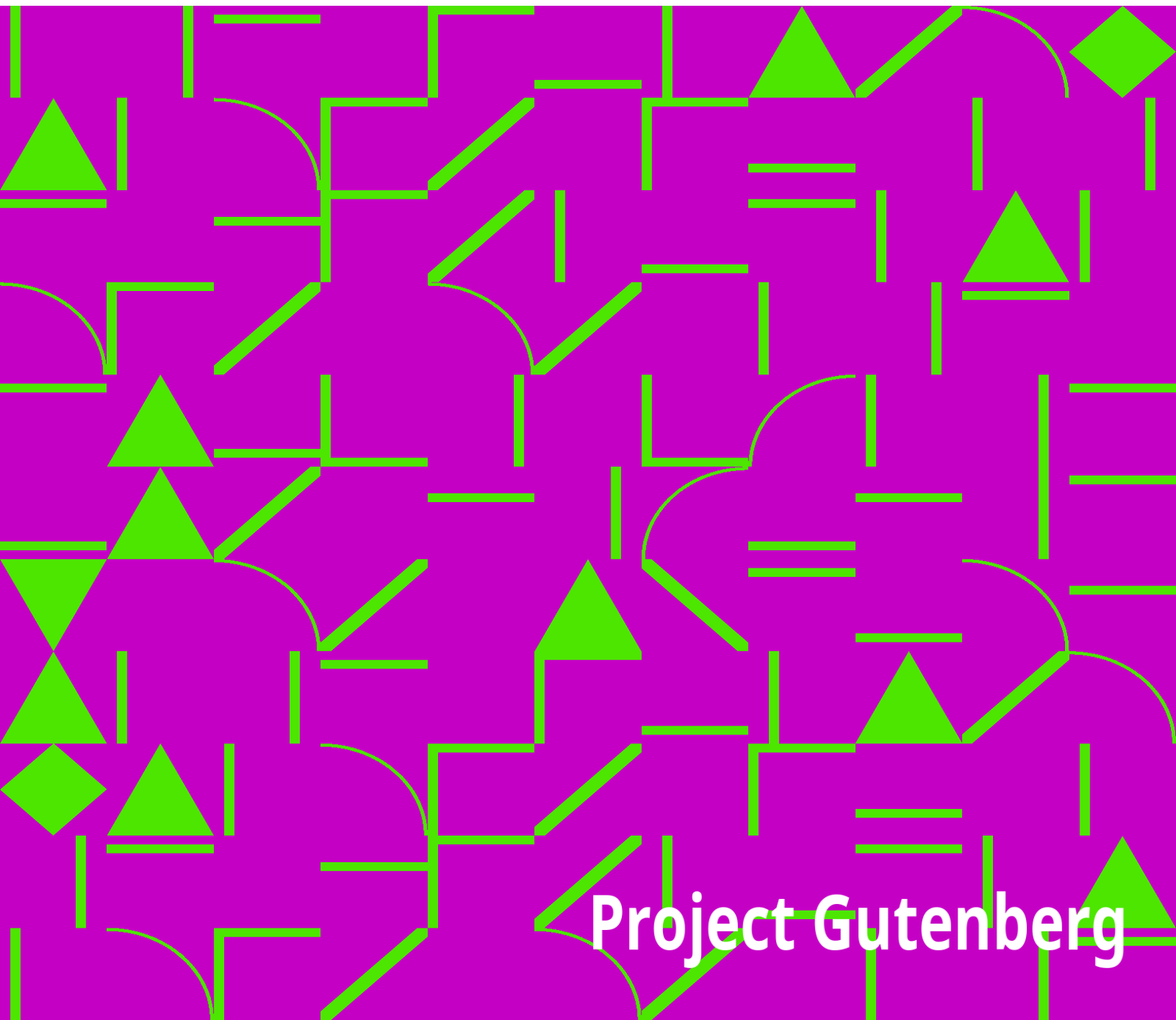


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B. M. Schmucker



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THE ORGANIZATION OF THE CONGREGATION IN THE EARLY LUTHERAN CHURCHES IN AMERICA.

by

BEALE M. SCHMUCKER, D.D.

From the Lutheran Church Review, July, 1887.

Philadelphia: 1887.

The Organization of the Congregation in the Early Lutheran Churches in America.

The Lutheran Church in this country has had an opportunity, as never before in its history, to determine for itself the whole form of its organization, uncontrolled by any external forces. In the old world the intimate and organic union of the church with the State left little liberty in this respect. When, therefore, the early Lutheran immigrants in this country were disposed to form themselves into congregations, to adopt regulations for their own government, to settle their relations to other Lutheran

congregations, to determine the order of worship to be observed, they had to feel their way in the dark. No little time passed before all these matters became settled on a permanent basis. To follow them in their efforts to obtain a satisfactory organization of the congregation, is what I propose now to do.

There is grave reason to doubt whether, prior to the arrival in Pennsylvania of Henry Melchior Muehlenberg, any of the German Lutheran congregations in Pennsylvania had a well-developed, clearly defined, written constitution. I have carefully examined all the written records of nearly all the congregations which were in existence at that time, and have failed to find evidence of any such constitution. The first known written constitution of the church at Philadelphia was introduced in 1746 by Brunnholtz and Muehlenberg, and it was brief and rudimentary. The congregation at the Swamp, New Hanover, was the earliest German congregation in America, begun in 1703 by Justus Falckner, but whatever the form of organization which it may have received from him, or his immediate successor, no record of it is known to exist, and the first written constitution now known is in the hand-writing Muehlenberg. The Tulpehocken congregations were established by Palatinates from the Hudson and Mohawk, who came to Pennsylvania in 1723 and 1729. They were familiar with the congregational organizations in New York under Kocherthal and Falckner, which were formed under the counsel of Court Preacher Boehm, probably after the similitude of the Savoy Church in London, and under the influence of the long established Dutch Lutheran constitution in New York, based on that at Amsterdam. But no written constitution is now known in Tulpehocken earlier than that introduced by Muehlenberg. In all the old congregations the case is the same, so far as any known evidence proves.

In all the German congregations in Pennsylvania, however, an organization was found when Muehlenberg came, which had arisen out of the necessities of the case, and in all of them it had the same character. There were two orders of officers in each congregation, called Elders and Vorsteher, elected by the members for a definite term. The open letter given by the congregations at Philadelphia, Trappe and New Hanover, to their representatives sent to Europe in 1733, is signed by the Vorsteher and Elders of the congregations, and there were like officers in these congregations when Muehlenberg arrived, to whom he presented his credentials. The form of power of attorney sent by Dr. Francke to be signed by the congregations in 1734, is addressed to the Elders and Vorsteher, and the letter sent to Dr. Ziegenhagen in 1739, is signed by the Elders and Vorsteher. The proceedings of the first meeting of the Ministerium of Pennsylvania show the presence of Deputy Elders and Vorsteher from the ten congregations represented. Indeed, it may be said that in all the congregations there were these two classes of officers. The distinction between the two classes may not have been very clear, and sometimes both are spoken of as Vorsteher, but after a general examination of their records, we are persuaded that it was a prevalent, if not universal usage of the congregations, before Muehlenberg's arrival, to elect these two classes of officers, to whom the direction of their affairs was intrusted. In the congregational constitution furnished the Salzburg emigrants to Georgia in 1733 by Drs. Urlsperger, Ziegenhagen and Francke, based on that of the Savoy Church at London, Elders and Deacons, annually elected by a majority of the members, were provided for.

The question very naturally arises and claims consideration, Whence came this usage of the Pennsylvania German Lutheran congregations? This arrangement is almost entirely unknown in the Lutheran Church in Germany, where the church is united with the State, and has little right of self-government. That the same mode of organization should have been

adopted at the outset by them all is not only in itself strange, but shows that this arrangement must have been brought to their notice from some quarter, and having been tested commended itself to them. We believe that this provision of Elders and Vorsteher or Deacons, was accepted by them from the Swedish Lutheran Churches on the Delaware, the early Dutch Reformed and German Reformed Churches in Pennsylvania, and the Dutch Lutheran Churches in New York and New Jersey, and ultimately from the German Lutheran Church in London, and the Dutch Lutheran Church in Amsterdam. And as these earlier organizations exerted an influence not merely upon the first shaping of the German Lutheran congregations, but continuously upon the whole formation of their congregational constitutions, until they assumed their final complete condition, it is the more proper that they should receive careful consideration.

ORIGINAL SOURCES OF ORGANIZATION IN THE GERMAN LUTHERAN CHURCHES IN PENNSYLVANIA.

1. *The Swedish Congregations.* Acrelius, in his history of New Sweden, does not describe the earliest organization of the congregation. The instructions given by the crown to Gov. Printz, 1642, simply say: "Above all things, shall the governor consider to see to it that a true and due worship, becoming honor, laud and praise be paid to the Most High God in all things, and to that end all proper care shall be taken that divine service be zealously performed according to the Unaltered Augsburg Confession, the Council of Upsala, and the ceremonies of the Swedish Church; and all persons, but especially the young, shall be duly instructed in all the articles of their Christian faith, and all good discipline shall in like manner be duly exercised and received." The earliest mention Acrelius makes of congregational officers, is in the time of Fabritius in 1684, when Church

Wardens made an appeal to the members with reference to the pastor's salary. In Sandel's time, 1702, new Church Wardens and Church Councilmen were installed, which suggests that these two offices were found in the time of Fabritius, so short a time previous. If this be a correct conclusion, the question would arise, whether this arrangement was introduced by Fabritius, or was in existence from the beginning? Fabritius was sent out from Amsterdam as the first settled pastor of the Dutch Lutheran congregations in New York. If those congregations were not fully organized before he came, they were certainly organized by him, and in either case after the type of that at Amsterdam. Fabritius founded the Swedish congregation at Philadelphia, and it is very possible that he may have given it a constitution like that of New York and Amsterdam. I do not know whether the congregations in Sweden have any such arrangement as is found in the churches on the Delaware. I find the office of Church Wardens mentioned in the Kirchen-Ordnung of Charles XI. in 1686, but am not sure of the extent to which the office agrees with that in the Wicaco Church. Acrelius describes the organization of this last-named congregation in Sandel's time, p. 216. "Pastor Sandel held a parish meeting, installed new Church Wardens (Kyrkowaerdar) and Church Councilmen (Kyrkoraeder), and at the same time explained to each of these their duties. Thus, 1.) The Councilmen were to have the oversight of the preservation and improvement of the church and parsonage. 2.) That each in his turn should look after the life of the people, and if any one should conduct himself improperly, give timely notice of it to the pastor, so that with his concurrence and advice, and according to the circumstances of the persons and their deeds, they might be brought before the Church Council (Kyrkoraedet), and either admonished, placed on trial, or excluded from the congregation. The office of the Church Wardens was: 1.) To collect and pay over the Priests' salary twice a year; 2.) To take up the collections in the church, and the other church dues, as for marriages, churching of women,

burials, etc.; 3.) To take care of the poor of the congregation; 4.) To keep the accounts of the church in good order and exhibit them annually on the 1st of May; 5.) To provide the pay for the sexton, etc."

This whole arrangement bears a close resemblance to that of the Dutch Lutheran Churches, and is virtually that found in the German Churches in Pennsylvania when Muehlenberg came. The Church Council consisted of the minister, the councilmen and wardens. These lay officers served for a fixed time, and were installed in their offices; but, unfortunately, it cannot be learned from this account in what manner they were chosen. The above arrangement continued in force until, in 1765, Provost Wrangel prepared a new constitution and secured a charter. In the new instrument the officers of the congregation are styled Rector, Church Wardens and Vestrymen, after the Anglican style. This constitution was wrought out by Wrangel in conference with Muehlenberg, and the mode of selection of officers is almost precisely the same as in the German Constitution of 1762: twice the number are nominated by those in office, and the election is by a majority of votes of the congregation.

The Swedish congregation at Philadelphia, as well as those at Morlatton and Merion to a less extent, undoubtedly exercised a marked influence on the German Lutheran congregations. It was well organized long before establishment of the first German Lutheran congregation in America. The pastor of the Wicaco Church from 1677 to 1693, Fabritius, was a German, and cared for such German Lutherans as settled near the city. Rudman, who succeeded him, showed his interest in the Germans by bringing Falckner into the ministry, and his successor, Sandel, united with him in this act. Rudman preached in Dutch, and may have also understood German. The first regular ministrant to the German congregation at Philadelphia was the Swede, John Eneberg, and it is probable that it was organized by him. Pastor Dylander held service for the Germans regularly in the Wicaco

Church, and Muehlenberg's services were held there mainly until the erection of St. Michael's. The Swedish ministers met with the Germans in the earlier meetings of the ministerium. The relations between Provost Wrangel and Muehlenberg were of the most intimate nature; they labored together as brothers in the superintendence of the congregations under their care, and finally when Muehlenberg was working out the enduring constitution of the German Church, Wrangel wrought out that of the Swedish Church. The German Church constitution was prepared with the co-operation of Wrangel, and he attended the meeting of the congregation at which it was accepted, and made an address. From the earliest times to the completion of the final constitution, the influence of the Swedish organization was strongly felt.

2. *The Reformed Churches in Pennsylvania.* The *Dutch Reformed* congregations at Bensalem and Neshaminy in Bucks County and at Whitemarsh, Montgomery County, were the earliest Reformed Churches in Pennsylvania, and antedate all the German Lutheran congregations except that at New Hanover. These Churches were organized in 1710 by Domine Paulus Van Vlecq, and in each of them a senior and a senior elder and deacon were elected to serve for two years. The senior went out of office annually, and the junior became senior, while the newly-elected officer became the junior. The mode of election is not entirely clear. The record simply says at Bensalem: "The Church Council, both Elders and Deacons, of Sammeny and Bensalem, were installed (*bevestight*) by Dom. Van Vlecq May 21, 1710," the day after that given for the organization. They may have been elected the previous day. At White Marsh the record says: "The church at Wytmess was organized June 4, 1710, the same day the Church Council there was installed." The record of the Dutch Reformed Church at Six Mile Run, near New Brunswick, N. J., organized November 15, 1710, says: "The Church Council was elected Nov. 15, and after having been announced three times, was installed." At the next election it is said: "Anno 1711, Oct.

23, the Church Council was elected, and after having been three times announced without objection made, they were installed Oct. 24," on which date also the treasurer presented his account. There must have been several services on those two days, at each of which the names of those elected were published. It does not appear in what manner the choice was made. They may have been selected by those in office, and when no objection was made after publication, the consent of the congregation was supposed to be given, or they may have been chosen by vote of the congregation. I am assured by Dr. Talbot W. Chambers, of the Collegiate Church in New York, that both of these modes are and have long been usual in the Reformed Churches, and that in the old mother congregation at New York, now enlarged to be the Collegiate Church, the former mode of selection has been used ever since its establishment. These officers were named Elders (*Ouderlinge*) and Deacons (*Diaconen*), who, with the Pastor, formed the Church Council (*Kerckenraet*). They were not chosen for life, but in this country, as in Holland, for a fixed term, usually two years. This organization of the Dutch Reformed congregations in this country agrees, entirely with that of the Reformed Church in Holland, as described by Benthem in his "*Hollaendische Kirchen und Schul Staat*," except that in Holland the pastors and elders alone form the Church Council; but there the deacons are also admitted to it in feeble congregations where the number of elders was small. Another feature of the organization of the Dutch Reformed Churches is that, in important cases, all who have ever held the office of elder or deacon are called together to give counsel. The Dutch churches here named were situated near to our Lutheran people, and they were the earliest formed among the Reformed or Lutherans, and must naturally have had an influence on their neighbors. In the Neshaminy settlement were found representatives of three religious bodies: there were Dutch Lutherans, who were afterward visited by Muehlenberg, Swedish Lutherans ministered to by the Wicaco pastors, and in largest numbers

Dutch Reformed, with resident pastors, with whom the Scotch-Irish Presbyterian settlers coalesced. The Swedish pastors certainly held services in the Reformed Church, and I have no doubt that Muehlenberg's services were held in the same church, as the Lutherans were few and never had a separate building.

The *German Reformed* congregations in Philadelphia, 1727, Germantown, Skippach, 1720, Goschenhoppen, 1731, Saucon, 1731, Egypt, 1731, Oley, 1731, Mosellem, 1731, and therefore in general throughout the district between the Schuylkill and Delaware, were formed somewhat earlier than the Lutheran congregations in their vicinity. As the members of the two religious bodies were closely intermarried and often worshipped in the same buildings, it is self-evident that the earlier organizations must have had an important influence on the later. Beside this, in Europe, especially in Holland, but also in Germany, there was a fuller self-government in the Reformed congregations than prevailed in the Lutheran in Germany. Their system was, therefore, better adapted for transplanting to a new country, where there was no connection between Church and State. The earliest German Reformed pastors came by way of Holland, and were aided by the church of that country, so that we may expect to find a close similarity between the Reformed organizations in this country, both German and Dutch, and we will not be disappointed in this. In his "Historic Manual of the Reformed Church," Rev. Dr. J. H. Dubbs shows such familiarity with the condition and history of the Reformed congregations from the beginning, that it was natural that we should turn to him, as a personal friend through many years, for reliable information as to the form of organization in the older congregation. In answer he says: "There can, I think, be no doubt that the offices of elder and deacon were brought over from the Fatherland, precisely as we have them at present. Max Goebel informs us (*Geschichte des Chr. Lebens*, vol. ii., p. 76) that in the Reformed Churches of the Rhine country, in the seventeenth and eighteenth centuries,

elders were always elected with prayer in the presence of the most prominent members of the congregation. Ordinarily the election was conducted by the Consistory: sometimes by the congregation itself, a double number of candidates being proposed by the retiring members of the Consistory. Every year one-half of the elders retired from office. The deacons were elected in the same manner as the elders. Their office had special reference to the wants of the poor. The election of elders for life was entirely unknown in the Dutch and German churches. Such is Goebel's account. I have few documents of an earlier date than 1740; but between that date and 1760 there are many in which both offices are mentioned. I have a document of 1730 signed by the '*AEltesten*' of the Reformed Church at Philadelphia. A petition in English, addressed in 1732 to Governor Gordon, is signed by seven 'Ancients' of the same congregation. Here four of the names are new, showing an intervening election. The deacons are not mentioned, but would naturally not appear in a document of that kind. Most of the early letters are addressed to the '*AElteste und Diaconen*' of the several churches. The rules for the Government of the Reformed Church at Amwell, N. J., 1749, are signed by the '*AElteste und Diaconen oder Vorsteher*.' It seems, therefore, that the two terms were used interchangeably. With regard to the points of doubt you suggest, I can only say:

"1. The two distinct orders, elders and deacons, have certainly existed from the beginning in the American churches.

"2. The name of the second order in German is either Diacon or Vorsteher; the former name probably more ecclesiastical, the latter more popular.

"3. The term of office was always fixed, but the period varied in different congregations. There was no life term, except in the ministry.

"4. The mode of selection probably varied in different churches as it does now. I imagine that in most churches the most prominent members met on an appointed day to hold the annual 'Kirchenrechnung,' and then quietly 'made out,' without a formal election, who were to fill the vacancies in the consistory. Very frequently, no doubt, retiring members nominated their own successors, to be approved or rejected by the congregational meeting." This clear description of German Reformed usage shows how great similarity there was in this respect between the American Reformed descendants of Hollanders and Germans. These Swedish and Reformed modes of congregational organization were here fully in operation in the territory on which our earliest German congregations were established.

3. *The Lutheran Congregations at Amsterdam and London.* The constitution of the Lutheran Church at Amsterdam is the most important and influential original source of Lutheran congregational organizations in America. It is the model from which the constitution of the Dutch Lutheran Churches in New York and New Jersey are directly derived. It is the original source of the constitution of the Savoy Church in London, which claims to be a simple translation of it, with some modifications. The Amsterdam constitution was, therefore, the immediate basis of the congregations in New York City, Albany, Loonenburg, Hackensack, on the Raritan, and of other congregations in New York founded by Falckner, Berkenmeyer and Knoll. The London constitution was the one on which the congregations founded by Kocherthal at East and West Camp, Rhinebeck, Newburg, Schoharie, and those which grew out of them all along the Hudson and Mohawk rested, modified by the influence of the previously existing organizations, based on the Amsterdam constitution. So that it may be said that the Amsterdam constitution, with the modifications made at London, is the source of organization for all the older congregations in New York and upper New Jersey. In Pennsylvania, I surmise that the Swedish Wicaco Church received its constitution through Fabritius from

New York be correct, the Amsterdam constitution underlies the Swedish organization, the influence of which on the German churches we have described. The London book was in the hands of Muehlenberg and the other German pastors in Penna., given to them by Ziegenhagen in London. Muehlenberg became acquainted with the Dutch Lutheran constitution, based on that of Amsterdam, in 1745, at the Raritan, and in 1750-1752 at New York and Hackensack, where for two summers he was pastor of congregations in which it prevailed. His estimate of it was very favorable; he says: "These Pastors (of the Dutch Church in New York) introduced a constitution, which they have prepared after the model of that of the Evangelical Lutheran Church in Amsterdam, and it was subscribed by them, as well as by the Elders and Deacons, and hitherto the Agende of Amsterdam has been used, all which were very well suited to the circumstances in America, and served to edification." The influence of these two constitutions, of Amsterdam and London, on those by whom the gradual completion of the work of organization in Penna. was made was very prominent. The London Constitution was the basis of that furnished by Ziegenhagen, Urlsperger and Francke to the Salzburgers, who settled in Georgia, and exerted an important influence on later congregations in that State and in the Carolinas. Having had the continuous approbation and commendation of Boehme and Ziegenhagen, court preachers at London, by whom, to so large an extent, the German immigration to this country was directed and counselled in religious matters, to whom nearly all correspondence was primarily directed, and who stood so near to the sovereign of the colonies, by whom also the calls to the Halle Missionaries were given them though the men were chosen at Halle; this constitution came to the Halle Missionaries clothed with great weight of authority. It is, therefore, right and proper, that above all others, these two constitutions should receive our careful examination. As that of Amsterdam is the earlier,

and the original basis of the other, we will first describe it, and then show the modifications made at London.

The *Constitution of Amsterdam* was originally adopted in 1597 and bore the title "Kerkelijke Ordonnantie, for the government, in the doctrines of the Divine Word, administration of the Sacraments and other matters pertaining to the administration of the Church, of the Congregation and Church at Amsterdam, which assembles in a house and adheres to the genuine unaltered Augsburg Confession, prepared and established by the Ministers and Deputies there, in the year of Christ 1597." The congregation dates from about 1588, and built its first church in 1632, before which time it worshiped in a house arranged for its use, but not having the form of a church. This constitution was revised in 1614, and in 1644 it was accepted as the general constitution for the Lutheran churches in the Netherlands. In 1682 it was materially changed and brought in the shape which it afterwards retained. The original form of 1597, with the changes made in 1614 and 1682 indicated in foot notes, is given in full in the "Geschiedenis der Amsterdamsche Luthersche Gemeente, door F. J. Domela Nieuwenhuis, Amsterdam, 1876, 8vo. pp. 298, 124." Appendix pp.32-62. It is very full and minute in its provisions and covers thirty octavo pages. A German translation of the edition of 1682 is given in Benthem's *Hollaendische Kirch und Schul Staat*, Francfurt, 1698. It is divided into two parts.

Part I. Chapter I. Of Doctrine. "The pastors of this congregation shall regulate and determine all their teaching and preaching by the rule of the divine Word, the biblical, prophetic and apostolical writings, and according to our Symbolical Books, to wit:—the unaltered Augsburg Confession, delivered to Charles V., Anno 30, the Apology of the same, the Smalcald Articles, and Formula of Concord, together with both Catechisms of Luther throughout, and shall not teach or preach anything contrary to the same, be it privately or publicly, nor shall they introduce or use new phrases (forms of statement) which are at variance with the same, or contradict them. In like manner in all points in dispute between us and others, they shall be guided and governed by the aforesaid Scriptures and also the aforesaid Symbolical Books, and shall decide and judge them by these alone, and shall plainly declare the foundation and understanding thereof to the congregation. They shall also order and direct all their preaching to the edification of the congregation, in such wise that the Word of God may be taught purely and clearly, the true doctrine be distinguished from the false and the true doctrine be urged on

the people so that they may understand how to guard themselves against false teaching and teachers." This chapter is long and defines the whole obligations of the preachers of the Word. Chapter 2. Of the times and places of assemblage for the preaching of the divine Word. Chapter 3. Of the Sacrament of Holy Baptism. Chapter 4. Of the Sermon of Repentance (Boetpredication) and the absolution before the administration of the Lord's Supper. Chapter 5. Of the administration of the Most Holy Supper. Chapter 6. Of Christian Discipline and the Ban. Chapter 7. Of Marriage. Chapter 8. Of the Visitation of the Sick and of the Poor, who cannot come to church. Chapter 9. Of the Burial of the Dead.

Part II. The Christelijcke Ordonnantie of the Congregation in Amsterdam, of the Conventu Ecclesiastico or Consistory, of the Calling, Office, Ministrations of the Preachers, Deputies (Deputy Elders 1682) and Deacons. Chapter 1. 'Of the Consistory. To the Consistory belong the Preachers, with the Deputy Elders (Gedeputierden Ouderlingen); such other persons may attend as by the usage of the Congregation are called thereto. At the meetings first of all the Holy Spirit shall be invoked, in prayer, and the session shall close with the giving of thanks. The oldest Pastor shall preside, and he, or the oldest Elder, shall present the matters for consideration, call on each for his opinion, and take the vote. In matters of doctrine, where we have the Word of God, the Preachers alone shall decide according to the same (after consultation with the Elders, 1682), but in matters of government the majority shall decide. In matters of great importance, as the calling of the Preacher, all former Elders, and also the Deacons, shall be called to take counsel and the majority of all votes shall decide (1682 all former Elders, called Oudste Raeden, and all former Deacons). Occasions of discipline of Preachers, Elders, Deacons, or other members were subject to action by the Consistory.

Chapter 2. Of the Call, Office, Duties, Salary and Dismissal of Preachers. The Call, which consists in a nomination and an election, shall be made by the Preachers, Deputy Elders, former Elders (Oudste Raeden), Ruling Deacons and former Deacons (Oude Diaconen). The Candidate, if previously a Pastor, must present testimonials from his previous charge of his irreproachable life and of his adherence to the pure doctrine of our Confession and our Symbolical Books, or if unordained be fully examined and approved, and his ordination promised by the proper authorities, and he must subscribe and obey this constitution with all its provisions. Provision is made for the trial of all charges against a Preacher. The widow of a Pastor receives his salary for nine months after his death.

Chapter 3. Of the Call and Office of the Deputy Elders. The congregation is exhorted on the Sunday before election to pray God that pious and devout men may be chosen. The Preachers, Elders and Deacons select twice the number of persons to be elected, whose names are publicly presented to the congregation, and any who have well-founded objection to make against any one proposed, is exhorted to present it. At the election the Preachers, Elders, former Elders, Deacons, former Deacons, and the contributing members of the congregation, in this order, present their votes, and those who receive most votes are chosen. The elders elected must present themselves before the congregation, answer publicly the questions as to their confession of faith, promise faithfully to fulfill the duties of their office, and be installed, with the laying on of hands and prayer. Their duties are described at length, and in summary are these: 1. To watch that the Word be purely preached by pious Preachers, the sacraments administered as Christ commanded, and the constitution observed. 2. To see that the Preachers and other ministrants duly and promptly receive their salaries. 3. Watch over the congregation that all sin, shame and offence be avoided. 4. Keep accurate account of all expenditures. 5. After their term of office expires attend all meetings of the Consistory when called. 6. Carry out, when

they enter upon their office, all measures taken by their predecessors for the peace and prosperity of the congregation. 7. On all festive and Sunday services stand at the church doors with plates to receive the offerings for the use of the church.

Chapter 4. Of the Call, Office and Duties of the Deacons. The Deacons are elected at the same time, place, and in all respects in the same manner as the Elders, and they also are installed exactly as the Elders. Their duties are these: Like the Elders to collect the offerings at the church doors made for the poor, and to keep an account of the receipts in a separate book; annually to visit the families of the congregation and receive their offerings for the poor, and to use and apply these gifts for the benefit of the poor; when distinguished and wealthy Lutherans visit the place to call upon them and ask an offering for the poor; to receive all legacies intended for the poor, and to keep an account of all these receipts. Then follow full directions for the care and relief of the poor, the needy, the stranger, with a thoroughly organized system for the whole work. The Deacons have nothing to do with the general affairs of the congregation, but are charged with the care of the poor and needy, and with this alone.

Chapter 5. Of the Office and Duties of the Comforter of the Sick, and Sexton. The congregation shall have a Ziekentrooster, who shall also be the Sexton (Koster en Knaap). The duties of this office are: Diligently to visit the sick, especially such as are in need, and to bring to them the comfort and directions of the Word of God. To give notice to the Pastor of those who desire the sacrament. To report to the Deacons any cases needing relief. To serve also as Sexton to the church. They shall receive a proper salary from the Consistory.

Chapter 6. Of the Obligations of the Congregation to its Preachers, Elders and Deacons.
Chapter 7. Rules for those who receive alms from the congregation.

In the articles on which the Preachers of the Augsburg Confession in Amsterdam are called, and by which they are to be governed in their whole office and ministrations, adopted in 1607, not only are all the statements of doctrine given in the constitution repeated, but there is this additional provision: "They shall, with good judgment and reasonable prudence, exclude from the use of the Sacraments and of the Ministrations of our Church, Papists, Anabaptists, Schwenkfelder, Calvinists, New Manicheans or Flacianer, and all others, who not only do not hold our doctrine, but also are an occasion of offence, and lead away the simple and weak."

This Amsterdam constitution is one of the most carefully prepared, well digested instruments of the kind ever produced, very full in all needed provisions for the administration [tr. note: sic] of the affairs of the congregation, and pervaded by a devout spirit; sound in the faith and

watchful of the life of Pastors, Officers and members. It well deserves the prominent place it holds among the sources of Lutheran organization in the New World.

The London Constitution.—St. Mary's Church in the Savoy, was organized in 1692 by the members of the older Hamburg church who lived west of Temple Bar, and received from King William an old Jesuit chapel, which stood on the ground which had belonged to the Duke of Savoy, which was reconstructed in 1694; a new church was erected in the same place in 1768. Its first pastor was M. Irenaeus Crusius, in whose time the constitution was adopted, in 1695. The preface says: "We, the present Pastor and Deputy Vorsteher, have taken the Kirchenordnung used by our brethren in Holland, have caused it to be translated into German, and, except for urgent reasons, have altered nothing therein, in order that our unity might the more clearly appear." The translation is made from the edition of 1682, and Benthem's translation agrees so nearly with it, that the one must have been used by the other; Benthem's preface is dated 1697, the London is dated 1695, and seems to be the earlier.

It is divided into two parts, the first containing the Kirchenordnung covers the ground of the Amsterdam book; the second contains the Order of Service which is not found in that of Amsterdam, where the Antwerp Agenda took its place. The part containing the Kirchenordnung is all to which the preface refers when it is said that it was taken almost exactly from the Amsterdam book. It also is divided into two parts, the first of which contains the same eight chapters already described in the Amsterdam book, the ninth in the edition of 1597 having been omitted in 1682. These chapters agree almost verbally with the Amsterdam book. The statements of doctrine are exactly the same, and I have noticed throughout this part no material change, except that the duties of the Amsterdam comforter of the sick are assigned to the pastor. The Second Part differs materially from that

of the Amsterdam Book, the chief differences being that there is but one order of congregational officers, Vorsteher, to whom all the duties of both elders and deacons are assigned; there is no comforter of the sick, but only a sexton; the contributing members take part in the election of the pastor as well as in that of Vorsteher; and there is no Consistory, but simply a meeting of the Vorsteher, in which not only does the pastor not preside, but his presence is not mentioned. In so far as these and other minor changes allow, the very words of the Amsterdam book are used. The contents of this part are: Chapter I. Of the Calling and office of Preachers and Deputy Church Vorsteher. Twelve Vorsteher are to be elected by the contributing members, who in important matters shall confer with the Preacher, take counsel from him and from the congregation in case of need, otherwise they shall refrain from molesting each other, except for good cause. The Vorsteher shall meet once a month, and absent members are fined; they each preside in turn for one month. In cases of importance the whole contributing membership are called in, and not alone those who have held office as at Amsterdam. Apart from these changes the provisions are the same as for the Consistory at Amsterdam; questions of doctrine being decided by the pastor alone, as at Amsterdam. Chapter II. Of the Call, Office, Salary and Dismissal of Preachers. Except that the nomination and election of the preacher is made by the whole contributing membership, and that controversies concerning questions of doctrine are to be determined, when they threaten the peace or unity of the congregation, by the decision of one or three German Universities of the Lutheran faith, instead of by the Synod, as in Holland, this article is taken bodily from the Amsterdam book. Chapter III. Of the Call and Office of the Deputy Church Vorsteher. Six Vorsteher are elected annually by the contributing members, without previous nomination, to serve for two years, and at the election when the names of those receiving most votes are announced, an opportunity is given for objection to any of them to be made, and if any be seriously objected to, a new vote shall be

taken in those cases. The provision for installation is omitted, so that in all probability there was no imposition of hands. Otherwise, this chapter is taken bodily from that concerning deputy elders at Amsterdam, with the mere substitution of the word Vorsteher. Chapter IV. Of Provision for the Poor. The Vorsteher shall appoint two of their number, every two months, to take charge of the offerings, collections, legacies, etc., for the poor. The offerings for the poor on Sunday were placed in a separate vessel provided in the church. With some slight variations the whole work of the deacons at Amsterdam is here renewed, except that it is assigned to two of the Vorsteher, in turn, for two months. Chapter V. Of the Sexton. That portion of this chapter which refers to Koster and Knapp at Amsterdam is retained, and that concerning the Ziekentrooster omitted. Chapter VI and VII are as at Amsterdam.

We here close the examination of the organization of Lutheran congregations existing in this country when Muehlenberg came, of the influences by which it had been produced, and of the European Lutheran constitutions which then and afterwards formed the basis on which it rested. We go on to describe the gradual formation, under Muehlenberg and the Halle Missionaries, of the constitution, afterwards accepted generally by the American congregations.

HENRY MELCHIOR MUEHLENBERG.

In 1742 H. M. Muehlenberg arrived in Pennsylvania, where he not only ministered to several congregations, but soon became virtual superintendent of all the congregations. He brought the troubled affairs of his own pastorate into order. He gradually guided and was guided to a complete organization of his congregations. He prepared and introduced the well

ordered constitutions by which their affairs have been regulated ever since, and which now forms the Order of Government throughout the body of older congregations. His labors and counsels were sought for, in ever-widening districts, until his oversight extended from the middle of New York to Georgia. He gathered the pastors and representatives of the congregations together and formed the United Evangelical Lutheran Ministry, of which union he became Senior; and he prepared the Order of Worship used throughout the churches. Whether authority from the Fathers at Halle and London at the beginning formally charged him with the oversight of the churches, I do not know; but the common consent of all concerned, and their urgent demand of such labor from him, actually made him Senior of the Ministry and Superintendent of the Churches, as well as missionary in chief to the scattered Lutherans in this land. He was called of God to this high office, and the call came through the churches, formally perhaps, certainly really.

And he was admirably fitted for this great work by natural talents and character, by liberal culture with severe formative trials in the attainment of it, and also by the peculiar circumstances and influences which surrounded him before coming to America.

His large mental powers, his force and energy of purpose, his self-forgetfulness and power of endurance, his consuming zeal and devotion of his whole faculties to his work, his tender sympathy and ardent love of souls, together with his admirable judgment and prudence, made him a born ruler of men.

There is one characteristic of the Patriarch of the Lutheran Church in America which is of such importance to his own times and which, after a century has passed, continues to have so great significance, that it claims attention; it is his fidelity to the confessions of the Lutheran Church. The

foundations of the organization of that church here were firmly placed upon those confessions in their entirety and in their true meaning. The relation of Muehlenberg to the confessions was in his own lifetime openly questioned by some of his co-laborers in Pennsylvania, like Stoever and Wagner, who affirmed that the Halle Pietists were not sound Lutherans; the same hue and cry was raised in New York by Berkenmeyer and Sommer, who were representatives here of the orthodoxy, which in Germany contended against Pietism; other good men, like Gerock and Bager, who had not been sent from Halle, sympathized with this feeling, and finally, with some encouragement from Gerock, Lucas Raus, in whom personal enmity toward Muehlenberg had been rankling for years, brought direct charges of want of fidelity to the confessions against him before the ministerium and offered to support them with evidence in writing. There have been those in these later years, who having themselves departed from the old confessions of our church, have affirmed that Muehlenberg had allowed himself the same liberty, and that he and his coadjutors had not themselves maintained, nor required of ministers and congregations an absolute, unconditional and complete acceptance of the confessions. The charges of his contemporaries were based on their general impression concerning the Halle school of pietism, and were entirely unsustained by any evidence furnished by Muehlenberg. The falsity of the charges, by whomsoever made, will be shown by the facts that in the ordination of ministers, in the reception of congregations into the union, and in the constitutions which they prepared for congregations, they required acknowledgement of the confessions and adherence to them in the most absolute terms. If we take Kurtz's ordination as a test, the evidence concerning which is full, we find among the questions to which he must furnish a satisfactory written answer, this one: "Ob unsere Evan. Luth. Lehre die allein gerecht-und seligmachende, und wo sie in Gottes Wortgegruendet sey?" Is our Evangelical Lutheran doctrine the only justifying and saving doctrine, and on what proofs of Holy

Scripture does it rest? To this his answer is: "Ja und amen ist dieses solches, solches bewaise ich, etc." "Yea and amen is it such, and I prove it thus, etc." In the revers which he was required to subscribe before ordination were contained the conditions on which he received and could exercise his office, and among them these two: "III. To teach nothing else, publicly or privately, in my congregation, except what accords with the Word of God and the Symbolical Books of the Evangelical Lutheran Church, and to this end diligently study the same. IV. To introduce no other ceremonies in public worship and the administration of the sacraments than those which have been introduced by the collegio pastorum of the united congregations, and to make use of no other formulary than that which they appoint for me." The declaration of the Tulpehocken Church, when it applied for reception, is given in full in Halle Records, new edition, pp. 139-141, and shows the conditions on which congregations were received, because the paper had been prepared for that purpose and exhibits "the steadfast adherence of the united ministers to the confession and doctrine of the unaltered Augsburg confession, which had here been attacked by false brethren, by fanatical sects, by epicureans and by divers others, in which assaults they had not only themselves continued steadfast, but had held firm the Evangelical Lutheran Church members, and had gathered them and increased their number, be it said to the glory of God, who had stood by them." The doctrinal foundation on which Muhlenberg [tr. note: sic] placed the congregations in their constitutions may be seen in that of the Augustus Church, 1750, hereinafter given. In 1762 it was deemed better to limit the congregational obligation to the Augsburg Confession; I have no doubt that it was done because an acquaintance with the whole symbols could scarcely then be expected of the congregation, while they continued to demand an obligation to the whole symbols of the ministers. As to the doctrinal basis in the constitution of the ministerium, nothing was formally established, there was no written constitution until after the separation of the missions in this

country from the patronage and government of the Old World after the independence of the States, in 1781.

But the charges made by Lucas Raus afforded Muehlenberg occasion to make his position very clear. These charges were referred to the Swedish pastors Provost Wrangel and Borell, to whom the written evidence was to be submitted, all of which they sent to Muehlenberg so as to enable him to make his answer. That answer shows that under what he deemed unjust assault and provocation, he was capable of vigorous indignation. The charge seems to have been sustained by nothing else than the statement that Halle Pietists were not orthodox Lutherans; and secondly, that Muehlenberg alleged that the Lutheran Church had some imperfections. Beside this charge of heterodoxy was another of life and conduct unworthy a Christian, which, from the proof, seems to have consisted in not estimating the complainer sufficiently highly and not treating him as he thought he deserved. But the wounded vanity of Raus had at least the good results that it caused to be written the statement in which Muehlenberg, with indignation repels the outrageous charge. From this statement, preserved with the other papers in the case in the Archives at Halle, and copied for the new edition of the Halle Reports, I quote this passage: "Ich biethe dem Satan und seinen dienstbaren Luegen-Geistern Trutz um etwas auf mich zu beweisen, das wider der Lehre der Apostel und Propheten und unserer Symbolischen Buecher streiten sollte. Ich habe oft und vielmals gesagt und geschrieben das ich an unsere Evangelische Lehre, nach dem Grunde der Apostel und Propheten und unserer Symbolischen Buecher, keinen Irrthum, Fehler oder Mangel faende." "I defy Satan, and all the lying spirits who serve him, to prove against me anything in conflict with the doctrine of the Apostles and Prophets and of our Symbolical Books. I have often and again said and written that I have found in our Evangelical doctrine, founded on the Apostles and Prophets, and set forth in our Symbolical Books, neither error, fault or anything wanting." If these words are not clear enough and

strong enough to answer any charge of confessional disloyalty, it would be difficult to say how it could be done.

I must avoid any entrance into the personal life of Muehlenberg, but there were influences exerted on him by his surroundings which trained and fitted him for his great life-work as the organizer of the Lutheran Church in America, to which I must allude.

Until his twenty-second year he lived at Eimbeck, formerly a free city, but then in the Grubenhagen Principality of the Duchy of Brunswick-Lueneburg. The church at Eimbeck had been reformed and set in order by Nicholas Amsdorf, but long before Muehlenberg's time, it had come under the jurisdiction of the Lueneburg KO. The edition issued by Frederick Duke of Br. Luen., in 1643, being in force during Muehlenberg's youth. Afterward at Goettingen, though the city had its own Ordnung, originally prefaced and sent by Luther, its worship was substantially that of the Calenberg Principality of Br.-Luen. So that until his twenty-eighth year he lived where the Government and Worship of the church were ordered under the directions of the two branches of the great family of KOO of Brunswick-Lueneburg. In the preparation of these books such men as Luther, Melancthen, Bugenhagen, Amsdorf, Corvinus, Chemnitz, Andreae and John Arndt took part. They are of the noblest and purest type of Lutheran Ordnungen, and we can well discern the effect of attendance on services of worship so ordered upon Muehlenberg when he came to prepare the Liturgy for the churches here.

When he came to Halle he entered within the domain of the Margravate of Brandenburg. Within the territory of this Margravate were found the most extraordinary arrangements in church affairs which existed in any part of the Lutheran Church in Germany. In the Duchies of Cleve, Julich and Berg, the Presbyterians or Reformed from the Netherlands, welcomed as

refugees, had secured a full, self-governing, Presbyterian system in the congregation, classis and synod. Under its influence the Lutheran Church had largely adopted the same system. The Lutheran KO in force in Muehlenberg's time says: "Each Congregation shall have its own Elders and Vorsteher, who with the Pastors of the place constitute a Presbytery or Consistory. There were to be four or six Elders, one half elected each year by the Presbytery. Those going out of office could nominate their successors."

The duties of the elders were: with the pastors, to have oversight of the spiritual concerns of ministers and congregations, to visit from house to house, to attend the Synod, to report transgressors to the pastor, to admonish them, to exclude the recusant from spiritual privileges, in short, to exercise discipline in connection with the pastor. Their whole spiritual office was ordered after the manner of Calvin at Geneva, and of the Refugee Presbyterian Congregations.

In each congregation were deacons in charge of the alms, appointed by the government, or, like the elders, by the Presbytery or Consistory. The whole care of gathering, keeping and distributing all alms was given to them.

The Classis, which met once or twice a year, was composed of all the ministers of the district, with one elder from each congregation, with schoolmasters and kuesters as found good. Above the Classis was the Synod, which met annually, composed of pastors and elders. A general Synod of representatives, four pastors and two elders, from the Synod of each province united the whole. We cannot but think that Muehlenberg's familiarity with these arrangements in Mark Brandenburg was a part of the training which influenced him in the organization of the church here. And in Halle itself, Spener had earnestly advocated the advantages of such

arrangements. He fervently desired and commended the above peculiar provisions, so unfamiliar to the Lutheran Church generally in Germany.

CONSTITUTIONAL HISTORY OF ST. MICHAEL'S CHURCH, PHILA.

When Muehlenberg came to Philadelphia in December, 1742, he presented his credentials and was accepted as pastor, in behalf of the congregation assembled in the Swedish Church, by the three elders and four vorsteher.

The first change made by Muehlenberg and Brunnholtz was in 1746, partly for the purpose of legally securing the property. The deed of the property, and the responsibility for debts incurred in erection of the church, were in the name of four vorstehers. Under the law, trustees could hold church property in trust, and twelve trustees were appointed, to whom all these things were transferred. These trustees were named by Brunnholtz and Muhlenberg, [tr. note: sic] the pastors being of the number. There was no limit of time established, but a vacancy made by death or removal was filled by election by the remaining trustees. But these persons are afterward called elders. For legal purposes they were trustees, and the property held by them as such. But they were a body of elders, not elected by the congregation, but chosen by the pastors at first, and self-perpetuating. They selected the vorsteher and presented their names to the congregation to afford opportunity for objection. If not objected to they were installed. These trustees, including the pastors, with the vorsteher, elected by themselves, constituted the church council. As at the time of the reformation, recourse was had to the princes as rulers, so here in the beginning it was thought wisest and safest to vest the government of the congregation in a few set over them by authority. Under this arrangement,

the administration of affairs went on from 1746 until steps were taken to prepare a new constitution, in 1762.

An address to the congregation in 1757, presents a survey of the whole course of procedure. Brunnholtz says: "1. On the XII. Sun. p. Trin., 1746, twelve men were publicly announced by me from the pulpit as elders. 2. In connection with these men, I chose four men as vorsteher, one-half to go out each year, as has since then been the custom. 3. These elders and vorsteher, when assembled under the direction of the pastor, were called the church council, because in their meetings they took counsel together and made decisions. Thus was laid the foundation of our administration for the future erection of the church."

The trustees or elders were not installed. The vorsteher were installed publicly. The record of Zion's Church gives fully the questions asked in 1757.

An account of the installation of the Vorsteher is given in the record, which, as it is the earliest we have found, may well be described. The two new men came forward, and Brunnholtz said: "The men chosen by us from four proposed stand here before you, against whom it is to be hoped that you have no objection to make, as you did not appear (at the annual meeting, when the names were announced). They are John Kuhn and C. R. Uhl. Dear Brethren J. K. and C. R. U., I will ask you the following questions, to which you will assent by saying 'yes.' 1. Is with reference to purity of life and setting a good example. 2. Will you strive to aid in advancing the welfare of the congregation in all things internal and external? 3. Will you live in peace with the two other Vorsteher? 4. Will you keep strict account of all monies received and keep them safely in the chest? 5,6. Concerning keeping order in church and caring for payment of salaries. Then answer by saying 'yes' and giving me your hand. And you,

members of the congregation, will you love and honor them, stand by them in all that is good, etc.; then answer 'yes.' You, J. K. and C. R. U., are hereby declared and confirmed as Vorsteher. And you, beloved brethren," naming them, "who go out of office, receive my hearty thanks and those of the congregation."

This preliminary arrangement is merely described in the record of the church council. It was not prepared in form as a written constitution, indeed a moderately full account of it is not given until 1757, though the duties of the Vorsteher are described in 1746. Then there was no written constitution at Philadelphia until 1762, so far as any known evidence shows.

I am strongly inclined to believe that this arrangement at Philadelphia was made chiefly by Brunnholtz, who, since June, 1745, had sole charge of the congregation there. Muehlenberg was, of course, a pastor there also, but in the division of labor, the actual care of the congregation was committed to Brunnholtz. That Muehlenberg was consulted and gave his consent is to be supposed, but that he gave way to the desires and plans of his associate is natural. At the Trappe, where Muehlenberg lived and had charge, he introduced an arrangement which was different from that at Philadelphia, and which may naturally be supposed to represent his views, as the other did those of Brunnholtz. As it is the earliest written document having at all the nature of a congregational constitution which has come down to us from the Halle men, an account of it may well deserve a place.

CONSTITUTION OF THE TRAPPE CONGREGATION, 1750.

"In the year of our Lord 1750, May 27, in the Evangelical Lutheran Church called Augustus Church, in Providence township, Philadelphia County, the following persons" (twelve names given) "were elected as church council,

by the whole congregation, at a free election, by a majority of votes, under certain conditions for life. The before-named elected elders and church councilmen hereby promise, before the most Holy God and the Christian congregation, by their own signature, by the help of God, faithfully to observe and execute the following Articles and Duties, to the best of their ability, so long as they remain in office, to wit:

"1. They shall strive, as they hope for their soul's salvation, that the Evangelical doctrine, according to the foundation of the apostles and prophets and our symbolical books, be ever more fully apprehended by their own souls, and that it may be adorned by their godly conversation, to the end that they not only rule well their own households but also be examples to the whole congregation. Should, however, which may God avert, any one of them fall away from the pure Evangelical doctrine and organization, and unite with some sect or with none, or fall into open sin against the Ten Commandments of God, then the pastor and other church councilmen shall admonish him, as prescribed in Matt. 18, and should the admonition be of no avail, he shall be removed from office, and shall have no right in the church, school, or their property, until he heartily repents and amends.

"2. They shall keep all deeds of church and school property and all accounts of church and school building funds and of all collections and alms in a chest procured for that purpose, that they may be preserved for posterity. The chest shall have two locks and two keys, one to be kept by the minister and the other by the church councilmen.

"3. They shall watch carefully that in the Augustus Church and school, the Evangelical doctrine, according to the foundation of the apostles and prophets and our symbolical books, be perpetuated to our descendants. And to the end that this aforesaid doctrine and organization (Oeconomic) may be

maintained, beside believing prayer, it is their duty to strive to continue in unity and intimate friendship with our spiritual fathers and patrons, and their true successors in London and Halle, as also with the other united congregations in this country, and their lawful pastors, and to make known any failure or decay in this respect.

"4. Should the Augustus Church be remembered by their last testaments by devout members with money or lands, or receive them in any other manner, then two church councilmen shall be elected, to whom such church property shall be entrusted." (Directions for investment and administration follow.) "But these moneys shall not be used for any other purpose than for the preservation and perpetuation of the true service of God, according to our evangelical doctrine and organization.

"5. The regular pastor and the church councilmen shall take care that no strange preacher outside of our communion, let him bear what name he will, shall preach or administer the sacraments in our Augustus church or school-house, that the congregation may not be thrown into strife. Whosoever will preach, or minister in any way, in our church must either have been sent by our fathers and benefactors in Europe, or be in connection with our united congregations and ministers, and have been examined to see that he holds the true Evangelical doctrine and leads a Christian life, for this church has been established and consecrated for this doctrine and for no other.

"6. On the day after New Year, in every year, the accounts of the collections and alms shall be presented in the presence of the church councilmen, and at the same time an inquiry shall be made as to how much or little of the minister's salary has been collected. The members shall also be reminded that they also should attend and learn how the accounts of the congregation stand.

"7. As often as necessary the pastor shall, through the vorsteher, call the church councilmen together, or himself invite them at a public service, to the end that together they may consider, consult and decide when there is need to build or to repair, to resolve or to execute.

"8. No one of the church councilmen shall have authority to do anything which requires a decision by all, but what is needful to be done shall be considered and decided by all in common. But if members are unable to be present through sickness or other causes, or if those present are not of one mind, the majority shall decide.

"9. When the church council (Kirchen Collegium) meets, the pastor shall begin with prayer to God, and then he shall present the matters to be considered. He himself shall have two votes, and he shall take diligent care that all things be done in an honorable, Christian and orderly way, for God loves order and hates disorder.

"10. Whoever would be and remain a regular member in our Christian church should strive to be at peace with all men, according to Christ's teachings, and rather endure wrong than to contend for trifles, and when any of us are subjected to so great wrong that he cannot bear it, the Christian magistracy is appointed to protect the good and to punish the wrong doers. But when brothers, members of one congregation, dispute about every little matter, and hasten to bring it before the magistrates, an occasion of offence is given, as Paul says in I Cor. 6: 1-8. If, therefore, the members of our congregation have any disagreement with each other, they should appear before the church council and be directed and reconciled in a Christian manner, if the matter may thus be adjusted. If, however, any will not do this, but is disposed rather to quarrel and judge, and will not yield when it is reasonable, and stubbornly persists in his own wrong-headed

way, he should be excluded from the congregation until he confesses his wrong and amends.

"11. The week before the Lord's Supper is administered the church council should meet, when necessary, to settle any strife.

"12. When the Annual Great Church Convention is held (meeting of the ministerium), two of the church councilmen must, without fail, be sent as delegates, in the name of the congregation, to consult and advance the common welfare. But as these two men will have expenses, such expenses should be repaid out of the common treasury, if they request it, for the laborer is worthy at least of his food, even though he desire no reward.

"13. When letters in common are to be sent to our reverend fathers and benefactors in Europe, or to other congregations, or our members desire testimonials for naturalization, the church councilman should not hesitate to sign them.

"14. If any man has aught against a church councilman, and hesitates about speaking to him of it, in love he may report it discreetly to the pastor, who will speak to him of it kindly. And so when any man has aught against the pastor, he may tell it to such councilman as has most fully his confidence.

"15. If any matter of great importance is transacted by the church council, it shall be reported to the fathers in Europe, and if on all sides it is thought best, it shall be recorded in the church record, and be transmitted for the benefit of our descendants.

"16. No meeting of the church council shall or can be held without the regular pastor, much less shall any resolution go in force without his signature.

"If the church councilmen observe all these regulations, continue steadfast in the pure doctrine of the faith and lead holy lives as children of God; if they rule well their own houses and families and serve as examples to the flock: to the best of their ability, by the grace of God, do their part that the holy gospel be perpetuated to our latest posterity, Satan and the world may indeed make sport of them, but God will be their shield and their great reward here on earth and hereafter forever. All that they have done to His honor, though they have only given a cup of water in His name, the Lord will acknowledge at the last day, before the multitude of many thousand angels and elect ones, and will say that it was done to Him. But should they use this office unfaithfully, and prove an occasion of offense to the congregation, which may God in mercy prevent, they will bring double condemnation on themselves. To the above duties, in general and in particular, we obligate and pledge ourselves by our signature with our own hand. Done at Providence, July 8, 1750." (Signed by all the councilmen before witnesses.)

There is no mention made of Vorsteher, except incidentally in Section 7, which is the more astonishing, as the annual settlement of accounts, in the same book, in the handwriting of Muehlenberg, both before and after the adoption of this constitution, mention the settlement as made by the pastor, elders and Vorsteher. There are also entries in 1760 and 1761, of the election, *per plurima vota*, of Vorsteher and of elders, probably to fill vacancies made by death. These Vorsteher were elected annually and this constitution makes the elders serve for life. The above document is followed by a carefully prepared constitution and rules for the parochial school. We see that Muehlenberg avoided the chief mistake of Brunnholtz in that he did not make the elders appointees of the pastor, but gave their election to the whole congregation.

The constitution of 1746, in St. Michael's, Philadelphia, proved even more unsatisfactory as the congregation increased in size. The interests at stake grew constantly larger, and the powers entrusted to the elders could scarcely be so exercised that dissatisfaction should not arise. The Elders elected the Pastor, they filled all vacancies in their own number, they selected the Deacons, they decided all questions of the purchase of property, and the incurrence of debt, and in all these matters the congregation had no control. It was an almost inevitable result that the pastor and schoolmasters should try to keep in friendly relations to the elders, and thus they arrayed against themselves all who were dissatisfied. Brunnholtz had died, 1757, and Heintzelman had preceded him in 1756, and the elders had elected Handschuh as pastor, who, though a devout and earnest man, had the most sickly pietism of any of the Halle men, and was the weakest of all the Philadelphia pastors, before or since; he was subject to very great prejudices and strongly inclined to build up an ecclesiola of his own type within the congregation. The resistance, estrangement and animosity toward the existing arrangements, grew gradually to be so great that the peace and unity of the congregation were threatened to such an extent that vigorous measures must be taken. The congregation demanded a fuller control of its own affairs, Handschuh and his elders sternly resisted the demand, and were convinced that the world would fall if the whole congregation were allowed to usurp the control which could only be wisely exercised by a few selectmen. The peril and strife grew so great, that after a long struggle it became an unavoidable necessity that Muehlenberg should be recalled to his office as chief pastor, and a new constitution prepared and adopted. Dr. Mann has presented, in chapter xxii. of his life of Muehlenberg, a most admirable account of the whole movement which resulted in the presentation of the new constitution; of the difficulties which preceded and made necessary its preparation, as well as of those which attended its introduction into the congregation, to which the reader is referred. The two

chief objections to the constitution of 1746 were that the pastor and elders were not elected by the people and thus became a close corporation, self-perpetuating and not subject to control by the congregation, and secondly, that property could be bought and sold and debt incurred, for which the congregation was responsible, without their having any voice in the matter. These evils must be remedied in the new constitution.

The new constitution was prepared by Muehlenberg in consultation, of course, with Handschuh and the elders, and pre-eminently with the Swedish Provost Wrangel. Months were spent in its preparation. The local difficulties and wants received the most careful consideration and some few of its provisions were temporary, and made in view of the previous arrangements. Thus the old elders were retained for life as trustees, but after their death the elders who took their place were to be duly elected by the congregation, and in the revision after the incorporation the name of trustee was removed. But Muehlenberg rose above the present necessities and conditions of the local congregation, and designed this constitution to be, as it became, the one which should be the general constitution for all the united congregations of the Ministerium. He had a full apprehension of the importance of the work in which he was engaged, and devoted to it his wisest judgment, and the results of his own experience and varied observations in the working of congregational constitutions. He also recognized the character of the civil government of the land and strove to bring the congregational government into harmony with it. He succeeded in gradually allaying the diversities and animosities at Philadelphia, and after the completion of the constitution, it was accepted by the congregation and publicly subscribed, first by himself, then by Handschuh and the elders, then, within a short time, by five hundred heads of families. Thus the foundation was laid on which the permanent prosperity of St. Michael's congregation rested, and on which it still peacefully rests. This constitution, with the removal of the temporary provisions at Philadelphia, was at once

accepted by the congregations at Providence and New Hanover; in Lancaster, during a visit of Muehlenberg, soon after Gerock left, in 1769, at York under Kurtz, in 1781, and earlier or later, by most of the prominent congregations connected with the Ministerium, at least in its chief provisions.

Constitution of St. Michael's Church, Philadelphia, 1762.

We, the subscribers, the lawfully called Pastors, Trustees, Elders, Vorsteher and communicant members of the Ger. Ev. Luth. Congregation of St. Michael's Church, acknowledge and bind ourselves to the following Church and School Constitution.

CHAPTER I.

OF THE PASTORS.

1. The present living pastors, and their successors regularly called, shall preach the Word of God, as given by the Apostles and Prophets, and in accordance with the Unaltered Augsburg Confession, publicly, purely, briefly, clearly, thoroughly, and to edification. They shall also have liberty on week-days, or in the evening to hold meetings in the church or school for edification, admonition and prayer, as their circumstances and strength allow; and in addition, in accordance with the command of Christ their Master, take most diligent care that the Word of God be freely sown, as living seed, and that the congregation be directed to true repentance of heart, living faith, and the power of godliness, unto their soul's salvation.

2. The regular pastors, as faithful stewards of the mysteries of God, shall, at proper times, administer the Holy Sacraments to those who apply for them in the appointed way, and who are fit, worthy and well prepared to receive them, at least in so far as external evidence shows; but they shall

also have liberty, to be exercised conscientiously, not by reason sinful passion of whatever kind, but according to the rule of the divine Word, to exclude from the Holy Supper, and from standing as sponsors at Baptism those who spiritually live in grievous sin and transgression, contrary to the salutary doctrine of our Lord Jesus Christ, or who by undisputable evidence are convicted thereof, until they have amended.

3. They shall not hesitate, when possible, to visit the sick, etc.

4. They shall especially have regard to the instruction of the young—superintend and visit the schools, etc.

5. They shall preside at the annual Kirchenrechnung, and at all meetings of the church council, and at the election of officers, etc.

6. They shall not absent themselves from the annual general church meeting, or convention of the regular ministers, without the most urgent necessity and the weightiest reasons, but willingly attend and also assist as much as possible, in serving vacant congregations connected with it, etc.

7. They shall themselves discharge the duties of their office in Church and school, as faithful stewards, as God may give them health and strength, and not have any minister or student take their place, who has not been examined and duly called and ordained in accordance with our Evangelical Church government, etc. It is not in conflict with this rule that our regular ministers should invite another of rightfully called ministers connected with us, when visiting them, to preach for them.

8. If a pastor of our congregation, should give occasion for serious offense, scandal or injury to the congregation, either in doctrine, or in life and conversation, or by violation of this church constitution; then the degrees of admonition shall be impartially followed, in the manner here

described: (1.) The Elders, or two-thirds of them, shall lay before such Pastor, with gentleness, the offense in doctrine of life which have been evident, or which have been sustained by two or three indisputably credible witnesses, and if he prove to be guilty, admonish him to amendment. (2.) Should this avail nothing, the whole church council shall invite the nearest Pastors of the United Congregations to meet at a convenient place, and in their presence renew the admonition. (3.) Should this also fail of the desired end, the matter shall be considered at a special meeting of the United Ministerium, or at the annual meeting, if it admits of such delay, and there be thoroughly examined, and the minister, if found to be guilty, and offending, shall be suspended from his office and benefices, and a full account thereof be published.

9. The election of a Pastor shall be held in the following manner: The whole Church Council shall consult with the older Pastors of the United Congregations, and carefully deliberate on this important matter and take note of the grace, gifts and experience of the several pastors, and at successive sessions impartially consider which one would best suit the vacant congregation, and at the same time would be willing to accept a call. When they agree upon some one as suitable for the congregation, they then invite him to preach a trial sermon, or as a visitor, and several Sundays or other days afterward, they shall ask the communicant members of the congregation for their opinion, or their vote may be sent in writing to the church council, whether they desire to receive and acknowledge him as their Pastor or not. Should two-thirds of the whole church council and two-thirds of the communicant members agree in approving the election, he shall be called. Should there be no one in the American Lutheran Ministerium who suits, and is willing to accept a call, the church council shall have full liberty, with the consent of the congregation, and of the United Ministerium, as they may deem best, to write to some godly Reverend Consistorium, or Ministerium, of the Ev. Luth. Church in Europe,

interested in the extension of the Kingdom of Christ, and call one or more Pastors, on condition that they be duly examined, rightfully ordained, pure in the Evangelical doctrine, and edifying in life and conversation, as becomes their doctrine.

10. As to salary of Pastors.

11. In the Public Worship, the administration of the Holy Sacraments as well as all other ministerial acts and ministrations, the Pastors shall conform to the Agenda and usage, which have been introduced, until such time as the United Ministerium and the congregation shall deem it necessary and profitable to make a better.

CHAPTER II.

OF THE EXTERNAL GOVERNMENT OF THE CONGREGATION.

1. The congregation shall, by virtue of this new constitution, have the perpetual right and liberty, to elect and confirm, in Christian order, by a majority of votes, the officers and ministrants necessary for the congregation.

2. The Church Council of the congregation shall hereafter consist of the Trustees, six Elders and six Vorsteher, regularly elected or confirmed by the congregation. (The Pastors were Trustees. In 1791 the Council was made to consist of the Pastors, Elders and Vorsteher, the Trustees being omitted.)

3. Temporary provision for the surviving Trustees.

4. The mode of election of Elders shall be as follows: 1.) The whole Church Council shall assemble on the day before the election, shall select from the members who have subscribed this constitution, according to their best judgment, impartially, without respect of persons, eighteen worthy

Christian men of good repute, whose names shall be distinctly written down and be presented to the congregation at the election. 2.) At the election the congregation present shall have the right and liberty to elect, by a majority of votes, six Elders out of the eighteen persons presented. These six Elders shall be presented to the congregation by the Pastors at the next public service, be reminded of their duties, and their names be entered in the Church Record. 3.) The aforesaid six Elders continue in office for three years, God willing, if they demean themselves as becomes their office; but the congregation shall always have liberty to re-elect them, if they consent to allow it.

5. As regards the office of the Vorsteher, it shall be as heretofore, except that there shall be six, instead of four, of whom one-half go out of office after serving two years, and new ones are to be elected in their place, in the same manner as is prescribed in the 4. for the election of Elders. The Vorsteher also shall be presented publicly to the congregation by the Pastors, be reminded of their duties, and thanks be returned to those who go out of office. Should any person elected as Elder or Vorsteher, decline, without sufficient reason, to accept the weighty office, he shall not go free without paying a considerable donation into the treasury; and then the person who received the next highest number of votes shall be presented. If the vote for several persons be a tie, the Church Council shall decide the case.

6. In the above described manner the Church Council is constituted of Trustees, Elders and Vorsteher.

7. When any important and weighty matter arises in the congregation, of whatsoever kind, whether within or without the church, whether it concerns the parsonage or school-house, the church yard or the burial place, it shall not be decided by the Pastors alone, nor by the other Trustees alone, nor by

the Elders alone, nor by the Vorsteher alone; but it must be carefully and well considered by the whole Church Council, and be approved by, at least, two-thirds of their whole number, and after that be laid before the whole congregation, and be approved by two-thirds of the communicant members of the congregation, especially when it demands contribution from the members. For these purposes, in such weighty matters, the whole Church Council shall be publicly invited to meet, and no member shall absent himself without sufficient cause, and no decision shall be valid or dare be executed, which has not been approved and taken by two-thirds of the members, entered in the Record and subscribed by their signatures, to the end that all occasion for strife may, so far as possible, be avoided.

8. The duties of the ruling Elders are, among others, these: 1.) They shall endeavor, by the grace of God, to set a good example, as well to their own households as to the congregations, by a Christian life and conversation. 2.) Take care, with the Pastors, that the Evangelical doctrine and Christian discipline be maintained and perpetuated in the congregation. 3.) That the debts of the congregation, both principal and interest, be decreased and removed, by payments from the treasury and by generous gifts, in the most advantageous manner. 4.) That the Ministers of the Word in the Congregation be supported. 5.) That the account of all receipts and expenditures be carefully kept, be submitted to the whole Church Council on the day before the annual congregational meeting, be examined, approved and subscribed by the Trustees, and there be publicly laid before the congregation at the meeting, and be entered in the Record. 6.) They shall attend the school examinations, and by several deputies, to be elected by the Church Council from their number, be present at the annual meeting of Synod, and in all other matters aid in promoting the welfare of the congregation.

9. The duties of the Vorsteher are, among others, these: 1.) They shall set an honorable Christian example to the congregation. 2.) They shall render all necessary aid at the public and special services of worship and in the administration of the Lord's Supper, especially at the Kinderlehre and in the visitation of the sick. 3.) They shall gather the offerings, keep an account of the same, and pay them over to the Elders as often as they may deem necessary to the welfare of the congregation. 4.) They shall maintain good order at the services of public worship. 5.) Should they find disorder, discord or occasions of offense in the congregation, they shall endeavor to remove them, or report them to the Church Council, that remedies may be applied in time. 6.) They shall collect the pew rents, and the charges for burial places. 7.) They shall give notice to the Elders of special meetings of the Church Council, attend all meetings of the Council and especially the annual meetings to prepare and present the financial accounts, give in beforehand their own accounts, and help to decide when any important matter is to be determined or adopted.

10. And inasmuch as church offices and ministrations in the country, although before God weighty and important, are yet considered contemptible by the ignorant and evil-minded, and are therefore exposed to many unfavorable criticisms and suspicions, when administered as God's Word directs; therefore, no complaint against Pastors, Trustees, Elders or Vorsteher shall be entertained, unless sustained by two or three credible witnesses, I Tim. 5:19. If, however, real offenses and transgressions, as Gal. 5:19-21; 6:1, become evident in the case of one or the other, which may God avert, the whole Church Council shall appoint an impartial committee, and through them examine the case, and pursue the grades of admonition, as Christ has commanded, without respect of persons.

CHAPTER III.

OF THE MEMBERS OF THE CONGREGATION.

1. Whoever would be a regular member of our Evangelical Lutheran congregation of St. Michael's Church, have a vote at elections, have part in the rights of membership and hold office therein; must, in accordance with Christ's command, so far as external evidence shows: 1.) Be baptized; 2.) Receive the Lord's Supper; 3.) Not live in open works of the flesh, Gal. 5:19; but, 4.) lead a Christian life, and not be engaged in any disreputable occupation; 5.) Contribute, according to ability, to the support of church and school and of the laborers in the same, so long as there is need, be it little or much, though it were only a cold water; 6.) Be subject to Christian order and discipline, and allow himself to be corrected in brotherly love, when he does wrong; 7.) and, next to God and the government, so conduct himself toward the faithful Pastors and elected officers of the congregation, that they may administer their office with joy and not with grief.

2. Whosoever fails in the aforementioned points, or in any of them, wilfully and of purpose, and will not by the grace and mercy of God correct his fault after the degrees of admonition have been observed, nor will be subject to Christian order, he cannot and shall not be a member of our Evangelical Lutheran congregation, and he shall have no right or share in its privileges, still less have right to vote or to hold office.

3. In case anyone of the communicant members of the congregation, should, through the deceitfulness of sin and of Satan, fall into gross sin, or open works of the flesh, which may God avert, and should such offense be established by credible and incontestible evidence, then shall he: 1.) Be privately admonished by the Pastor and be counselled to true repentance and reconciliation through faith. 2.) Should this not avail, he shall again be admonished by the Pastor, in the presence of the Elders and Vorsteher. 3.) Should this fail, he shall be excluded from the congregation, in the presence of the Church Council or by its action, and he shall have neither part nor will, until by the goodness or the severity of God, he has been led to

repentance and ask forgiveness of the congregation for the offenses committed, which shall be done through the Pastor, without mention of the name. In such case he shall be received again and acknowledged as a member, if his life and conversation prove the repentance and amendment to be sincere.

This constitution as a whole and in all its parts, shall be held inviolate in our Evangelical Lutheran congregation of St. Michael's Church and dependencies, and shall hold good and continue in force, until the whole Church Council and congregation, or at least two-thirds of both, to wit, of the Council and of the communing members, shall deem it necessary and useful to amend, or to add, or to exclude anything in the same; all of which is certified by our signatures; done at Philadelphia, Oct. 18, 1762.

This constitution was with few modifications accepted by the united congregations, one after another. It was the basis of the new congregations formed. It was carried by the minister's throughout the wide limits of Pennsylvania and adjacent States. It was inherited by new Synods formed out of the Penna. Ministerium. It was carefully studied and its main features adopted by the preparer of the Formula of Government and Discipline of the Synods of West Pennsylvania, Maryland and Virginia, and then became that of the General Synod. The great body of the congregations in this country, outside the bounds of recent German Synods in the West, are organized on its plan.

As to its character, it bears marks on its surface of Reformed influence. It contains the Reformed provision of elders and even the characteristic Calvinistic designation, Ruling Elders. The determination of its character was undoubtedly influenced by Reformed forces. The Swedish Constitution in this country in Wrangel's time, and before, was probably brought from the Dutch Church at New York, and may even have already felt the power

of the Reformed Church of England. The Church of Amsterdam undoubtedly was greatly influenced by the organization of the Reformed Churches of the Netherlands. The Lutheran Churches in New York and New Jersey were certainly moulded by that of Amsterdam and London, as well as by the surrounding Dutch Reformed Churches. And these all had some influence in shaping the form of the Philadelphia Constitution. And then, too, our Churches here were in close relation to the German Reformed Churches in the same section, and they greatly influenced, not so much the ministers as the people, to whose demands the constitution was in part a concession. But, nevertheless, the resemblance is more in outward form than inner spirit. There are elders, but the whole spirit which creates and pervades the office of Ruling Elder in the *Ordonnances Ecclesiastiques de l'Eglise de Geneve*, the KOO. of the Netherlands, even of the Lutheran Churches in Mark Brandenburg, is entirely wanting. The elders and Vorsteher are so much alike that the care of the purity of the church is attributed more to the one, and that of the poor more to the other, but it is a distinction with little difference. The trustees were required by the law of that time and are no integral part of the plan. The elders and deacons are the representatives and agents of the congregation and their office rests only on the right of the congregation to act, and its ability to deputize some to act for all. The needs of the church's affairs call for some such deputies and they are provided. The American representative and elective mode of government had perhaps as much influence as anything else in forming the views of the people; and the adaptation of this constitution to these sentiments and wants and modes of thought and action has been the chief reason for its general acceptance and permanent endurance.

Beale M. Schmucker

*** END OF THE PROJECT GUTENBERG EBOOK THE
ORGANIZATION OF THE CONGREGATION IN THE EARLY
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